the case.[8] 60 Mich. App. 92, 230 N. W. 2d 322. After the Supreme Court of Michigan denied review, the plaintiffs appealed to this Court, 28 U. S. C. § 1257 (2), and we noted probable jurisdiction, 425 U. S. 949.[9]

---

[8] The purpose of the remand was not expressly indicated. The trial court had entered judgment for the defendants upon the ground that the complaint failed to state a claim on which relief could be granted. The state appellate court's ruling that the 1973 amendment was not to be given retroactive effect did not undermine the validity of the trial court's judgment, for the Court of Appeals' determination that any possibly meritorious claims raised by the plaintiffs were prematurely asserted required the same result as that ordered by the trial court. The remand "as to the retroactive application given to [the 1973 amendment]" must, therefore, have been only for a ministerial purpose, such as the correction of language in the trial court's judgment for the defendants. In these circumstances, the judgment of the Court of Appeals is final for purposes of 28 U. S. C. § 1257 (2). See, *e. g.*, *Pope* v. *Atlantic Coast Line R. Co.*, 345 U. S. 379, 382; *Republic Natural Gas Co.* v. *Oklahoma*, 334 U. S. 62, 67–68; *Richfield Oil Corp.* v. *State Bd. of Equalization*, 329 U. S. 69, 72–74.

[9] At oral argument the suggestion was made that this case might be moot. The only agency-shop clause placed in issue by the complaints was contained in a collective-bargaining agreement that expired in 1971. That clause was unenforceable as a matter of state law after the decision in *Smigel* and the ruling of the State Court of Appeals in the present cases that the 1973 statute should not be given retroactive application.

But both sides acknowledged in their briefs submitted to the Michigan Court of Appeals that a successor collective-bargaining agreement effective in 1973 contained substantially the identical agency-shop provision. The Court of Appeals appears to have taken judicial notice of this agreement in rendering its decision, for otherwise its ruling that the 1973 amendment was not retroactive would have disposed of the case without the need to consider any constitutional questions. Since the state appellate court considered the 1973 agreement to be part of the record in making its ruling, we proceed upon the same premise.

The fact that the 1973 agreement may have expired since the state appellate court rendered its decision does not affect the continuing vitality of this controversy for Art. III purposes. Some of the plaintiffs in both *Warczak* and *Abood* either refused to pay the service charge or paid it under protest. See n. 2, *supra*. Their contention that they cannot